

# Counting Talk at the Supreme Court

Six defensible answers to who talks the most, and one number that turns out to be about a rule

84-355 Democracy's Data

August 2026

*"The justices are talking more than they used to."*

That sentence has been true for five years and it has been written about the wrong thing. This chapter is about the difference.

The sibling chapter in this part built a score for the Supreme Court out of votes. It had to say, over and over, that almost nothing in the Supreme Court Database is an observation. Whether a decision was liberal or conservative is a coder's reading of an opinion. So is the issue area, and so is the reason the Court took the case. **The Court publishes opinions, and opinions are not data until somebody makes them into data.**

Oral argument is the exception, and it is why this chapter sits beside that one. The Court records the argument itself. Oyez publishes that audio lined up with the transcript, one row per speaking turn, with a start time and a stop time on every row. Nobody had to read anything and reach a conclusion to know that Clarence Thomas first asked a question 115.15 seconds into the argument in *Williams v. Reed*.

So here is the same institution, measured twice. One file is made of judgments. The other is made of a clock. This chapter asks what the second kind buys you, and the answer is less than you would think and something better than you expected.

## 01 What arrived

Everything below comes from Oyez, a free public archive of the Court's audio run by Cornell's Legal Information Institute, Justia and Chicago-Kent College of Law. The build reads 1,409 arguments across the 2005 to 2025 terms: every argument the Roberts Court has heard, and 363,292 speaking turns inside them.

None of it was assembled with counting in mind. Oyez is a teaching archive, built so that students and the public could hear the Court rather than read about it. Its editorial product is precisely the object measured here: the transcript aligned against the audio, with a speaker's name on every turn. Using that as a measurement instrument is a repurposing, and a fortunate one. An archive made for listeners keeps exactly the details a listener needs, and they turn out to be the details a count needs too.

The file is not a table. It arrives as nested text, and the shape of it is the first thing worth seeing. Here is one turn, exactly as it comes down:

| Field            | Value                                                                                      |
|------------------|--------------------------------------------------------------------------------------------|
| case             | Williams v. Reed (23-191, 2024 term)                                                       |
| speaker          | Clarence Thomas                                                                            |
| role             | Associate Justice of the Supreme Court of the United States                                |
| start            | 115.15 seconds in                                                                          |
| stop             | 135.735 seconds in                                                                         |
| seconds of floor | 20.59                                                                                      |
| words            | 58                                                                                         |
| text             | Well, what's the difference? If it's – if – if – let's say – and I'm just speculating –... |

Read down that and compare it with the row of the Supreme Court Database printed in the sibling chapter. There, every value except the name and the date was an integer standing for a word somebody chose. Here, `start` and `stop` are seconds. **Nobody decided them. A machine lined the words up against the tape.**

That is a real difference and it is worth naming. It is also smaller than it looks.

## 02 The clock is honest. The turn is not.

**A turn is a decision, and a person made it.** The timestamps are attached to units that a court reporter drew. Somebody decided where one turn stops and the next begins. Somebody decided whether an interruption counts as a turn of its own. When two people talk across each other, somebody decided which of them got the words.

Oyez then attached a name to every turn, which is a second judgment on top of the first. None of that is sloppiness. There is no way to turn a recording of nine people interrupting each other into rows without deciding what a row is.

So the honest description is narrower than “this file has no judgments in it.” It is this: **the judgments moved upstream.** In the Supreme Court Database they sit in the column you want to analyse. Here they sit in the definition of the row, which is easier to forget about and just as consequential.

One more decision is this build's own. Two kinds of justice turn are not participation and are dropped from every count below.

| Kind                  | Example                                              |
|-----------------------|------------------------------------------------------|
| Gavelling in and out  | “We'll hear argument this morning in case 23-191...” |
| Handing off the floor | “Justice Sotomayor?”                                 |
| Courtesy              | “Thank you, counsel.” / “No questions.”              |

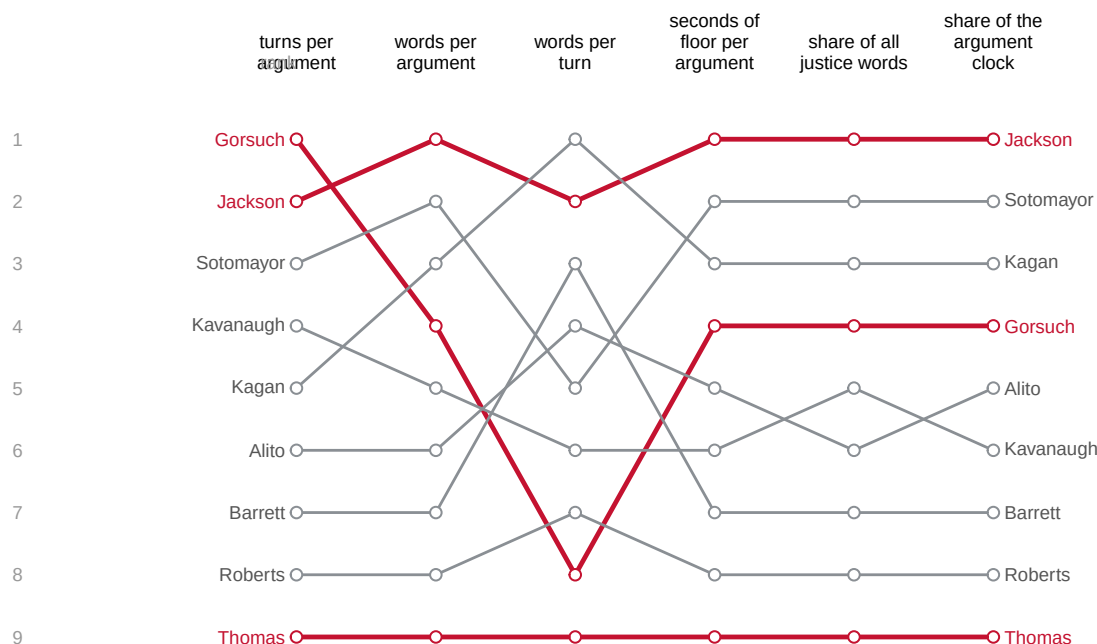
The Chief Justice opens and closes every argument. Counting those turns would make whoever holds that office the busiest questioner on the Court by arithmetic rather than by behaviour. Dropping them removes 2.63% of all turns here. Lee Epstein and Eric Posner (2026) drop the same two categories and report that it removes 4% of theirs. The two rules are close enough to be looking for the same thing, and far enough apart to be worth saying out loud.

### 03 Who talks the most?

This is the question every story about a hot bench is really asking, and it has no single answer. Below are 6 ways to ask it, over the 2022 to 2025 terms, which is the window with the current nine justices in it. Every one of them is defensible. Every one is computed from the same turns.

| Measure                       | What it counts                                            |
|-------------------------------|-----------------------------------------------------------|
| turns per argument            | how often a justice takes the floor                       |
| words per argument            | how much a justice says in an argument                    |
| words per turn                | how long a justice goes when they do speak                |
| seconds of floor per argument | how much of the clock a justice personally holds          |
| share of all justice words    | a justice's share of everything the justices said         |
| share of the argument clock   | a justice's share of the whole argument, lawyers included |

**Before you look at the figure, commit to a number.** Take the nine justices and rank them by how many words they say in an average argument. Now rank them instead by how many seconds of the clock they personally hold. Those sound like the same question asked twice. Across all 6 measures, how far does one justice move? Say how many places, from best rank to worst, the biggest mover travels. Then say how many of the nine hold exactly the same rank on all 6.



**Figure 1. The same nine justices, ranked 6 ways, on the 2022 to 2025 terms.** Rank 1 is at the top. Each line is one justice and keeps its identity across every column, so a line that slopes is a justice whose answer depends on which question you asked. Nine is more than the eye can separate by colour, so nobody gets a colour of their own and names sit at both ends of every line. On screen every line starts grey and hovering raises one. In print the three justices the text discusses are the ones drawn in red.

| Justice   | Turns per argument | Words per argument | Words per turn | Seconds of floor per argument | Share of all justice words | Share of the argument clock |
|-----------|--------------------|--------------------|----------------|-------------------------------|----------------------------|-----------------------------|
| Gorsuch   | 1                  | 4                  | 8              | 4                             | 4                          | 4                           |
| Jackson   | 2                  | 1                  | 2              | 1                             | 1                          | 1                           |
| Sotomayor | 3                  | 2                  | 5              | 2                             | 2                          | 2                           |
| Kavanaugh | 4                  | 5                  | 6              | 6                             | 5                          | 6                           |
| Kagan     | 5                  | 3                  | 1              | 3                             | 3                          | 3                           |
| Alito     | 6                  | 6                  | 4              | 5                             | 6                          | 5                           |
| Barrett   | 7                  | 7                  | 3              | 7                             | 7                          | 7                           |
| Roberts   | 8                  | 8                  | 7              | 8                             | 8                          | 8                           |
| Thomas    | 9                  | 9                  | 9              | 9                             | 9                          | 9                           |

Neil Gorsuch is the whole argument in one line. Ranked by turns per argument, Gorsuch is **first** on the Court. Ranked by words per turn, the same justice over the same terms is **eighth**. Nothing about the underlying turns changed. The question changed by a few words.

**7 places is the widest swing, and 8 of the 9 justices move at all.** Almost nobody stands still. If you have ever read that some justice is the most active questioner on the Court, that sentence had a measure behind it, and the writer probably did not tell you which one.

The reason is not mysterious once you see it. Taking the floor often and holding it a long time are different habits. A justice who fires twenty short questions and one who asks three long ones can end up with the same word count and opposite rankings on everything else.

## 04 Where the measures agree

Now the other half, which matters more.

| Quantity                                                  | Value                 |
|-----------------------------------------------------------|-----------------------|
| Justices in the top 3 on all 6 measures                   | Ketanji Brown Jackson |
| Justices ranked last on all 6 measures                    | Clarence Thomas       |
| Different justices who rank first on at least one measure | 3 of 9                |
| Widest swing by any one justice                           | 7 places              |

**The ends of the table do not move.** Ketanji Brown Jackson is in the top three on every measure. Clarence Thomas is last on every measure. The scrambling is all in the middle, where the differences between justices are small enough that the choice of measure decides the order.

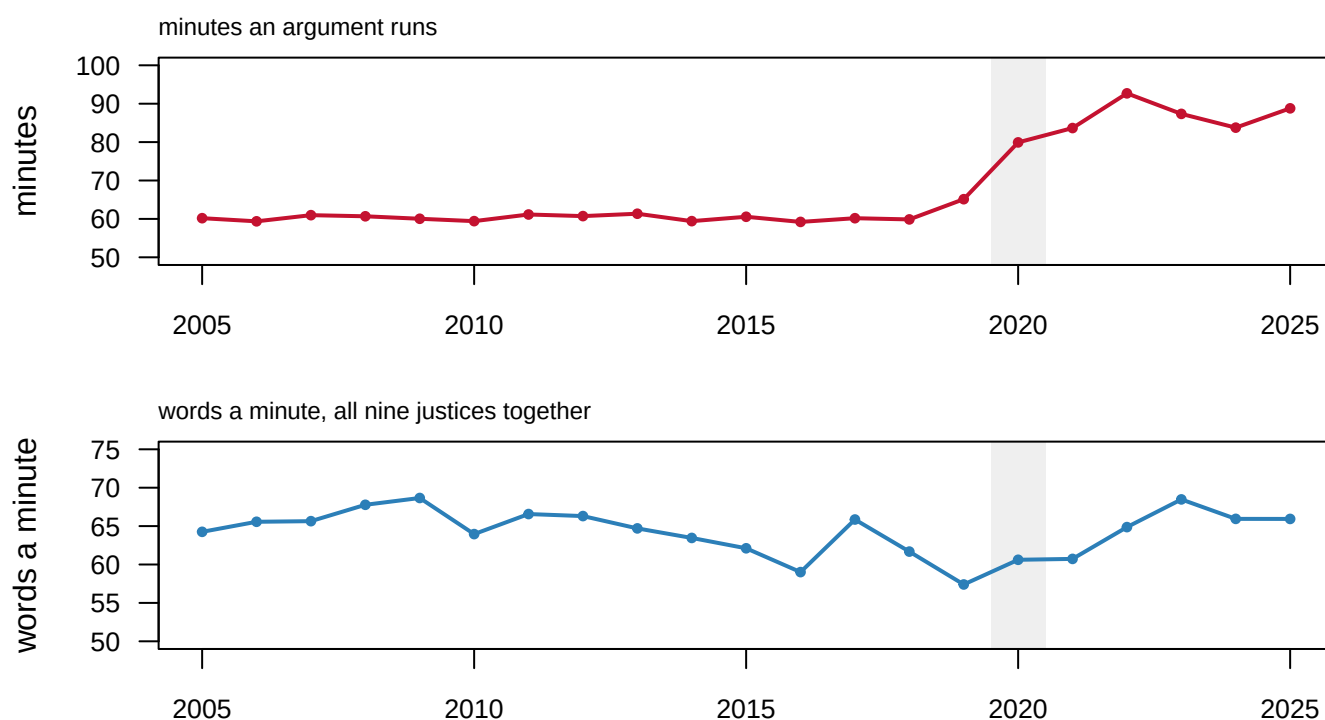
This is the same lesson the sibling chapter reached from votes, arriving from a different direction. There, an ordering of the justices was stable at the level of blocs and unstable at the level of neighbours. Here, a ranking is stable at the extremes and unstable in the middle. **The coarse structure is in the data. The fine structure is in the choice of measure.**

There is an outside check available on that, and it is unusually clean. Epstein and Posner ran 18 measures of participation rather than 6, on a different set of transcripts, and reported that the same justice placed in the top three on 17 of them. Two teams, two sources, two lists of measures, and the same shape.

## 05 The number that is not about the justices

Everything so far has been a fact about nine people. This section is not, and telling the difference is the skill worth taking out of this chapter.

Start with the sentence at the top: the justices are talking more than they used to. It is true. In the 2005 term an argument ran 60.2 minutes on average. In 2025 it ran 88.8. The justices got through 3,867 words in an average 2005 argument and 5,855 in an average 2025 one, which is half as much again.



**Figure 2. How long an argument runs, and how fast the justices fill it.** The top panel is the mean length of an argument in each term. The bottom panel is the number of words the justices got through per minute of argument. The shaded band is the 2020 term, argued by telephone. The two panels are drawn one above the other rather than on a shared frame. Minutes and words a minute are different units, and putting them on one plot would suggest a relationship the data does not contain.

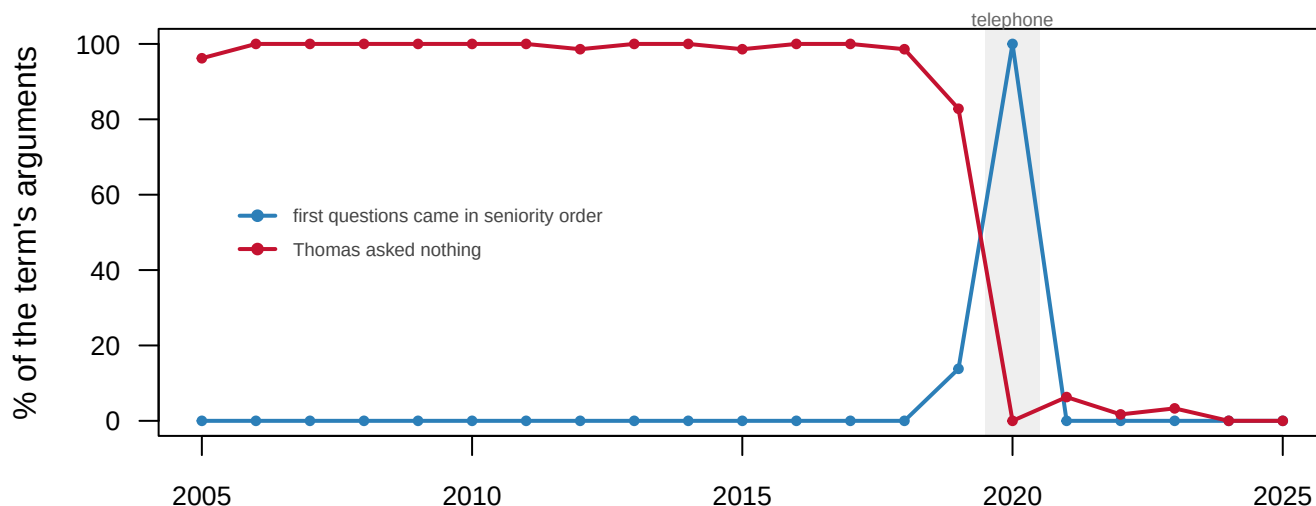
Look at the bottom panel. **The justices speak at 64.3 words a minute in 2005 and 65.9 in 2025.** That rate barely moves across the whole 21 terms. They are not talking faster, and in any given minute they are not talking more. The argument simply lasts longer, by 43% on average since the Court stopped meeting in its courtroom.

The bench did not get hotter. The container got bigger.

## 06 What changed on 4 May 2020

On that date the Court heard argument by telephone for the first time, and gave itself a rule it had never had. After the advocate's opening, the justices would question one at a time, in order of seniority, with the Chief going first.

That rule leaves a mark you can measure. If the justices ask their first questions in seniority order, the list of who spoke first, second and third is sorted. So count the arguments where it is.



**Figure 3. Two shares of each term's arguments.** In blue, the share where the justices asked their first questions in exact order of seniority. In red, the share where Justice Thomas asked no question at all. Both are divided by the same bottom number, the arguments heard that term, which is why they belong on one axis.

| Terms        | The room                                        | In seniority order                                  |
|--------------|-------------------------------------------------|-----------------------------------------------------|
| 2005 to 2018 | the courtroom, no rounds                        | 0.0% at its highest, 14 terms of 14 at exactly zero |
| 2019         | the courtroom until March, the telephone in May | 13.8%                                               |
| 2020         | the telephone, seniority rounds                 | 100.0%                                              |
| 2021 to 2025 | the courtroom, a seniority round at the end     | 0.0% to 0.0%                                        |

**For 14 straight terms the number is exactly zero. In the telephone term it is 100.0%.**

Then the Court went back to its courtroom and it fell to 0.0% again.

The 2019 term is the seam, and it reads 13.8%. That term was argued in the courtroom until March and by telephone in May, so it is the only one in the file with both rules inside it.

Nothing about the nine people produced that. They did not become more deferential to seniority in 2020 and abandon it in 2021. **An administrative decision about how to run a hearing on a conference call moved a social statistic from 0 to 100 and back.**

The fall back to zero is worth a second look, because the rule did not go away. The Court kept a seniority round when it returned, but put it at the *end* of each advocate's time, after the open questioning. So the first questions went back to being a free-for-all while the ordered part moved somewhere this measure does not look. **A measure that reads 0% in 2021 and 0% in 2015 is not saying the same thing about those two terms.**

## 07 The other thing the rule did

The red line in Figure 3 is Justice Thomas.

| Quantity                                                         | Value       |
|------------------------------------------------------------------|-------------|
| Terms from 2005 to 2018 where he asked nothing in every argument | 10 of 14    |
| Arguments he sat for, 2005 to 2018                               | 990         |
| Of those, the number in which he asked nothing                   | 984 (99.4%) |
| The 2020 term, argued by telephone                               | 0.0%        |
| Since 2020, arguments he sat for                                 | 361         |
| Of those, the number in which he asked nothing                   | 7 (1.9%)    |

Thomas asked nothing in 99.4% of the arguments he sat for through 2018. In 10 of those terms he asked nothing in every single argument. He was famous for it, and the fame came with explanations about temperament and about what he thought argument was for.

Then the Court went to the telephone, the format handed every justice a turn by name, and his silence went to 0.0%. It has stayed near there: 1.9% across every argument since.

**Whatever that silence had been, it was at least partly a fact about a format in which you had to interrupt to be heard.** A measure of a person turned out to be measuring an arrangement of chairs. That is the single most useful thing in this chapter, and it generalises well past the Supreme Court.

One caution belongs with those numbers. Counting silence needs a roster, and a transcript has none: a justice who says nothing leaves no row in it. The bench list here comes from Oyez's record of who was sitting in that stretch of the Court's history, so a justice recused from one case reads as a justice who kept quiet in it. The first version of this build did not notice, and reported that no justice had ever been silent, which is what a file that only records talking will always tell you.

## 08 Checking it against somebody else's file

The measures above have an unusual advantage: somebody else built the same thing from different paper, three days before this chapter was written.

Epstein and Posner assembled the Roberts Court Oral Argument Corpus from transcripts bought from Westlaw and published a report on it for the *New York Times* on 12 August 2026. **Their file is not public and cannot be**, because Westlaw licenses it, so nothing in this chapter is built on their data. What follows is a comparison, and the left column is the only place in this chapter where a number came from somewhere other than this book's own build.

| Quantity                                  | Epstein and Posner report | This build, from Oyez |
|-------------------------------------------|---------------------------|-----------------------|
| Arguments in the 2005–2025 terms          | 1,425                     | 1,409                 |
| Speaking turns, before the two exclusions | 368,369                   | 363,292               |

| Quantity                                   | Epstein and Posner report | This build, from Oyez |
|--------------------------------------------|---------------------------|-----------------------|
| Speaking turns, after them                 | 353,278                   | 353,755               |
| Justice words per argument, 2005 term      | 3,866                     | 3,867                 |
| Justice words per argument, 2025 term      | 5,802                     | 5,855                 |
| Arguments with at least one silent justice | 1,105                     | 1,098                 |
| Longest argument, in minutes               | 193                       | 192                   |

Two teams, two sources, two parsers written by people who never spoke. The justice word count for the 2005 term differs by 1 word in 3,867.

That is worth more than it looks. It says the thing being counted is robust to who counts it, which is not true of most measures in this book. The share of decisions coded conservative in the sibling chapter would not survive a second team recoding it. **Word counts survive because a word is not a judgment.**

The differences that remain are also informative rather than embarrassing. This build finds 1,409 arguments against their 1,425, because Oyez is missing audio for a handful. The turn counts differ by a fraction of a percent for the same reason.

## 09 What this evidence will bear

The record is complete and it is not a sample. Every argument the Roberts Court has heard is here, and the counts inside them are reproducible by anybody with the same file. Two independent teams got the same numbers, which is the strongest form of check available and one most chapters in this book cannot run.

The limits bound different claims, and each has appeared above in its place. **A turn is a transcription decision**, drawn by a court reporter, so every count of turns inherits a definition nobody in this chapter chose. **The rule for dropping gavel and courtesy turns is this build's own**, and it removes a different share than Epstein and Posner's does. **The bench roster is a period, not a day**, so a recusal reads as a silence. And **the seniority measure looks only at first questions**, which is why it reads zero for two terms that are nothing alike.

The largest limit is not about the data at all. **Nothing here measures persuasion.** Talking is not the same as changing an outcome, and the justice who says least may be the one who decides the case. This chapter can tell you who held the floor. It cannot tell you who won the argument, and the temptation to slide from one to the other is exactly what a clean, complete, timestamped file makes easy.

Two questions stay open. Whether the longer post-2020 argument produces better decisions is not answerable from a transcript, and nobody has proposed a way to answer it. And whether the seniority round improved the hearing or merely made it orderly is a question about what oral argument is for, which Epstein and Posner take up in the paper this report accompanies.

What can be said is worth the trouble. **The same nine justices, the same 1,409 arguments, and six reasonable ways to ask who talks the most produce 3 different answers to that question.** The extremes hold and the middle does not. And the sharpest movement in the whole file, a number going from zero to a hundred and a justice's twenty-year



silence ending, was not a change in anybody's behaviour. It was a change in the rules of the room.

**Ask of any statistic about people: could a rule have produced this?** For most of them the answer is no. For this one it was yes, and it was hiding behind a sentence everybody found easy to believe.

## 10 Sources

### Data

- **Oyez**, oral argument audio aligned to transcripts, 2005–2025 terms. <https://api.oyez.org> — keyless and public. Three endpoints are read: the case list for each term, each case, and each case's argument transcript. The transcript is turn-level, and every turn carries a start and stop time in seconds. 1,409 arguments and 363,292 turns are read; two kinds of justice turn, gavelling and courtesy, are excluded from every count, by a rule the build script states.
- The bench roster used for the silence table is Oyez's record of the natural court, which is the set of justices sitting over a stretch of terms rather than on a given day.

### Compared against, but not used

- Epstein, L. and Posner, E. A. (2026). *Two Decades of Oral Argument in the Supreme Court, 2005–2025 Terms*. Report prepared for the *New York Times*, 12 August 2026. <https://epstein.wustl.edu/s/oralargumentreport.pdf> The underlying Roberts Court Oral Argument Corpus is built from Westlaw transcripts and is not publicly available, so the six figures quoted from it here are read off the published report and are labelled in the table that uses them.

### The data itself

Every figure above is drawn from these tables. They are plain CSV, they open in a spreadsheet, and they are yours to take further.

`arguments.csv`, `exhibit.csv`, `measures.csv`, `order.csv`, `silence.csv`, `speakers.csv`, `totals.csv`

### Your turn

None of these is answered above, and every one can be answered from the tables you just opened.

- `measures.csv` ranks the justices six different ways. Find a justice whose rank changes a lot between measures. Which measure would you use, and what would you be claiming?
- `arguments.csv` has `minutes`, `turns` and `justice_words` per case, with a `regime` column. Compare the regimes. What did the rule change actually change?
- `silence.csv` has `pct_silent` per justice per term. Find the justices who said nothing most often. Then check whether that changed under the new format.
- `order.csv` gives `pct_in_seniority_order` by term. Follow it across the regime change. Who benefits from a fixed speaking order?

### Academic literature

- Epstein, L. and Posner, E. A. (2026). "What Is Oral Argument in the Supreme Court For?" [https://papers.ssrn.com/sol3/papers.cfm?abstract\\_id=7227018](https://papers.ssrn.com/sol3/papers.cfm?abstract_id=7227018)
- Epstein, L., Landes, W. M. and Posner, R. A. (2010). "Inferring the Winning Party in the Supreme Court from the Pattern of Questioning at Oral Argument." *Journal of Legal Studies* 39(2): 433-467.
- "How a Covid-Era Scramble Transformed Supreme Court Arguments." *New York Times*, 13 August 2026, the article the report above was prepared for.

### Further reading

- Johnson, T. R., Wahlbeck, P. J. and Spriggs, J. F. (2006). "The Influence of Oral Arguments on the U.S. Supreme Court." *American Political Science Review* 100(1): 99-113.
- \begin{ddaiprompt}{rebuild}{Rebuild this data yourself, with an AI assistant} I want to rebuild a public dataset from its original source, without any starting files. Please do the following and show your work.

THE SOURCE. Oyez — a joint project of Cornell's Legal Information Institute, Justia and Chicago-Kent College of Law — publishes every Supreme Court oral argument as audio aligned to a transcript, turn by turn, each turn timestamped to the hundredth of a second. The API is open, no key or account. Asking [https://api.oyez.org/cases?per/\\_page=0/&filter=term:2005](https://api.oyez.org/cases?per/_page=0/&filter=term:2005) lists a term's cases; each case's own JSON names its argument audio, and the argument's JSON holds the whole transcript. Do this for the 2005 through 2025 terms — twenty-one terms, about 1,500 cases, roughly half a gigabyte in all.

HOW TO FETCH IT. Case by case, patiently. There is no bulk file, so this is thousands of small requests: pause between them, and cache everything that arrives so a re-run never asks twice.

WHAT TO BUILD. 1. One row per argument: date, how long it ran, how many turns, how many words, how many justices spoke. 2. Per justice per term: turns, words, and seconds — after dropping the turns that are not participation, meaning the Chief's gavel-work ("We'll hear argument this morning in...") and pure courtesy ("Thank you, counsel"). Counting those would crown the Chief the most talkative justice by construction.

CHECK YOUR WORK. The copy this book used was fetched in August 2026. If your rebuild matches it, you should find: - 1,409 arguments parsed — against the 1,425 counted by Epstein and Posner's published report, which is built from licensed Westlaw transcripts nobody can redistribute - 363,292 turns read, with 2.63% dropped as administrative or courtesy - the longest argument runs 192.3 minutes Oyez keeps posting arguments as terms proceed; a later fetch has more rows because the Court kept sitting, not because you made an error. \end{ddaiprompt}